

1 ENGROSSED HOUSE
2 BILL NO. 3405

By: Patzkowsky of the House

3 and

4 Pederson of the Senate
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7 An Act relating to agriculture; amending 2 O.S. 2021,
8 Section 3-220, which relates to noxious weeds;
9 providing that poison hemlock and kudzu are a noxious
10 weed; providing for the eradication of poison hemlock
11 and kudzu; removing fine; and providing an effective
12 date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 2 O.S. 2021, Section 3-220, is
15 amended to read as follows:

16 Section 3-220. A. 1. The plants musk thistle (*Carduus nutans*
17 L.), Scotch thistle (*Onoprodum acanthium* L.), ~~and~~ Canada thistle
18 (*Cirsium arvense*), poison hemlock (*Conium maculatum*), and kudzu
19 (*Pueraria montana*) are designated as noxious weeds. The Legislature
20 finds that these thistles and poison hemlock and kudzu are a public
21 nuisance in all counties across this state.

22 2. It shall be the duty of every landowner in each county to
23 treat, control, or eradicate all Canada thistles, musk thistles, ~~or~~
24 Scotch thistles, poison hemlock, and kudzu growing on the

landowner's land every year as shall be sufficient to prevent these
thistles, poison hemlock, and kudzu from going to seed.

3. The Department of Transportation, the boards of county
commissioners, and any other public, private, or corporate entity
who shall maintain rights-of-way in the State of Oklahoma shall be
responsible for removing any thistle, poison hemlock, and kudzu
infestation that occurs within their jurisdiction.

~~4. Failure of the landowner to treat, eradicate, or control all
musk, Canada, or Scotch thistle may result in a fine not to exceed
One Thousand Dollars (\$1,000.00) for each violation per day.~~

~~5.~~ Upon written complaint, the State Department of Agriculture
shall inspect the type of thistle, poison hemlock, or kudzu
infestation, assess the nature and extent of the thistle, poison
hemlock, or kudzu infestation on the property of the landowner and
determine the most appropriate thistle or weed treatment, control,
or eradication method available for the type of thistle, poison
hemlock, or kudzu and location of the property.

B. The State Board of Agriculture shall:

1. Promulgate rules setting categories or degrees of
infestation which would require specified treatment, control, or
eradication;

2. Include musk thistles, Scotch thistles, ~~and~~ Canada thistles,
poison hemlock, and kudzu as prohibited noxious weed and weed seed

1 pursuant to the Department's authority and responsibility under
2 Article 8 of the Oklahoma Agricultural Code;

3 3. By November 1, 2000, and annually thereafter prior to the
4 growing season of musk thistles, Scotch thistles, ~~and~~ Canada
5 thistles, poison hemlock, and kudzu complete an annual survey
6 detailing the degree of infestation of these thistles, poison
7 hemlock, and kudzu across the state. The results of these surveys
8 shall be reported to Oklahoma State University; and

9 4. In all counties of this state, provide information to
10 newspapers of general circulation stating that musk thistles, Scotch
11 thistles, ~~and~~ Canada thistles, poison hemlock, and kudzu are a
12 public nuisance and that it is the duty of every public, private, or
13 corporate landowner to treat, control, or eradicate these thistles,
14 poison hemlock, and kudzu growing on any property owned by the
15 landowner. The information shall be provided at the beginning of
16 the cycle of growth of the musk thistles, Scotch thistles, ~~and~~
17 Canada thistles, poison hemlock, and kudzu and at other times as
18 necessary to inform landowners of the provisions of this subsection.
19 The information material shall also include:

- 20 a. information detailing the process by which an
21 interested landowner may receive assistance pursuant
22 to this subsection for the removal of thistles, poison
23 hemlock, and kudzu from infested property,
24 b. the telephone number of the Department, and

1 c. a statement informing the landowner that failure to
2 remove musk thistles, Scotch thistles, ~~and~~ Canada
3 thistles, poison hemlock, and kudzu may subject the
4 landowner to legal action requiring the treatment,
5 control, or eradication of these thistles, poison
6 hemlock, and kudzu.

7 C. Upon request of the landowner or the Department, the
8 designated Oklahoma State University extension agent for a
9 particular county shall evaluate or, if there is no extension agent
10 for a particular county, the Department shall inspect the type of
11 thistle, poison hemlock, and kudzu infestation, assess the nature
12 and extent of the thistle, poison hemlock, and kudzu infestation on
13 the property of the landowner, and determine the most appropriate
14 thistle, poison hemlock, and kudzu treatment, control, or
15 eradication method available for the type of thistle, poison
16 hemlock, and kudzu and location of the property.

17 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 9th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate